

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	23CV418208	Zoe Binschus vs Pamela Edillon, M.D. et al	Minor's Compromise Claim Parties to appear.
<u>LINE 2</u>	25CV461304	Bueno People Ltd vs Chargelink, LLC	Order of Examination Parties to appear.
<u>LINE 3</u>	25CV473752	Bank of America N.A. vs Hector Calouro	Motion to Withdraw as Attorney Parties to appear.
<u>LINE 4</u>	25CV477635	Mid-Century Insurance Company vs Justin Collins	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Line # 3

Case Name City of San Jose vs Roy Abbott

Case No. 24CV442351

Permanent Injunction and Entry of Default Judgment

I. BACKGROUND

This case stems from a Complaint filed by Plaintiff City of San Jose (“City”) against Defendant Roy Abbott (“Abbott”) on July 2, 2024 alleging public nuisance and unlawful and unfair business practices at the residential property located at 1906 Somersworth Drive, San Jose, California 95124 (“Property”). (Complaint at p. 1-10). Plaintiff City sought declaratory and injunction relief as well as pecuniary penalties and attorney’s fees and costs. (*Id.*, at p. 11-12). On July 17, 2024, Plaintiff City obtained a Temporary Restraining Order that the Honorable Helen E. Williams authorized. On September 5, 2024, Plaintiff City sought a Preliminary Injunction against Defendant Abbott that was authorized by Judge Williams and filed on September 9, 2024.

The City also moved for default judgment against the Defendant. On September 5, 2024, Entry of Default was entered against Defendant Abbott. On March 4, 2025, Defendant Abbott filed a motion to set aside the default and for leave to file an answer that was heard on September 30, 2025 by the Honorable Shella Deen. After the hearing, Judge Deen granted the defendant’s motion to set aside the default based on a plausible showing of mistake, inadvertence, and excusable neglect and directed Defendant to file responsive pleadings to the Complaint within ten court days. The City’s request for penalty in the amount of \$1,000.00 was denied without prejudice. Defendant Abbott filed an Answer on November 25, 2025 and then a First Amended Answer on December 23, 2025.

On May 20, 2025, Plaintiff City of San Jose filed this motion for permanent injunction and entry of default judgment against Defendant Roy Abbott.

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the City’s moving papers including a notice of the motion for permanent injunction and entry of judgment (totaling 2 pages); memorandum of points and authorities in support of the motion (totaling 8 pages); Declaration of Vance Chang in support of Plaintiff’s motion (totaling 3 pages) and attached Exhibit ; Request for Judicial Notice and attached Exhibits A-C; proof of service; case status conference statements; and the pleadings.

II. LEGAL STANDARD

Pursuant to Civil Code section 3422, “a final injunction may be granted to prevent the breach of an obligation existing in favor of the applicant: (1) Where pecuniary compensation would not afford adequate relief; (2) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief; (3) Where the restraint is necessary to prevent a multiplicity of judicial proceedings; or (4) Where the obligation arises from a trust.” (Civ. Code § 3422).

A final judgment on the merits. (*Aspen Grove Condominium Association v. CNL Income Northstar LLC* (2014) 231 Cal.App.4th 53, 58).